The Centre for Public Integrity

Submission: Inquiry into the conduct of the 2025 federal election and related matters

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Table of Contents

4 About The Centre for Public Integrity
5 Executive Summary
6 Summary List of Recommendations
8 The Electoral Reforms Passed by the 47th Parliament
8 The Electoral Reforms Passed by the 47th Parliament Must be Revisited
10 Preparatory Work Must be Undertaken to Support Compliance
14 Complementary Reforms to Address Undue Influence in Politics
16 Threats of Interference in the Electoral System
18 The Composition of the Parliament: Fixed Terms & Four-year Terms
18 Fixed Terms
19 Four-year Terms

About The Centre for Public Integrity

The Centre for Public Integrity is an independent think tank dedicated to preventing corruption, protecting the integrity of our accountability institutions, and eliminating the undue influence of money in politics in Australia. Board members of the Centre include the Hon Anthony Whealy KC, the Hon Margaret White AO, the Hon Michael Barker KC, Professor Allan Fels AO, Professor Joo Cheong Tham, and Geoffrey Watson SC.

More information at www.publicintegrity.org.au

Executive Summary

The Centre for Public Integrity welcomes the opportunity to contribute to the JSCEM's inquiry into the conduct of the 2025 federal election and related matters. The submission addresses three key areas: implementation and operation of electoral reforms passed by the 47th Parliament, threats of interference in the electoral system, and parliamentary composition — including fixed and four-year terms.

While the Centre has long supported holistic reforms to the regulation of money in politics aimed at improving transparency and fairness, it expresses significant concern about the rushed and opaque process that accompanied the passage of the *Electoral Legislation Amendment (Electoral Reform) Act 2024*. The Centre urges a properly informed review of the reforms before their scheduled commencement on 1 July 2026 to ensure they genuinely enhance democratic integrity rather than entrenching major party advantages.

The submission emphasises the need for comprehensive preparatory work by the Australian Electoral Commission (AEC) to facilitate compliance with the new electoral finance regime. The Centre recommends that the AEC adopt a proactive, stakeholder-engaged approach built around five principles: stakeholder engagement, public scrutiny, education and information, measures to facilitate compliance, and adequate resourcing.

These steps are particularly crucial for smaller parties, independents, and third-party campaigners. Additionally, the Centre supports complementary reforms to strengthen political integrity, including significant changes to the federal lobbying framework that it has previously advocated for — including legislating the Lobbying Code of Conduct, expanding the definition of lobbying, introducing monthly disclosure requirements, extending cooling-off periods, and transferring enforcement to an independent statutory authority.

The Centre draws attention to broader threats to Australia's electoral integrity, especially from misinformation, disinformation, and undue influence. It calls for coordinated government action to promote transparency, support knowledge institutions, enhance digital literacy, and strengthen public-interest media.

Regarding parliamentary terms, the Centre supports further inquiry into fixed terms—to improve fairness and certainty—but does not support four-year terms, citing concerns about diminished accountability and weakened democratic oversight. Any move to lengthen terms or formalise fixed terms, it notes, would likely require constitutional amendment and should only proceed following careful inquiry and public engagement.

Summary List of Recommendations

1. The Centre recommends a properly informed review of the **federal electoral laws**, and that further changes need to be made to key areas of the reforms. We recommend that these amendments are revisited during the 48th Parliament, before the laws take effect on 1 July 2026.

2. The Centre for Public Integrity recommends that the AEC, supported by appropriate resourcing, undertakes the important **preparatory work** that needs to be done to design systems that facilitate compliance with the new regime when it does come into effect and to engage stakeholders in that process; this particularly applies to new entrants, smaller parties and independents and third-party campaigners (especially small organisations).

   We recommend this is done in accordance with the following five principles:

   1/ Engagement with stakeholders:

   Both at the stage of designing the system as well as include an ongoing system of review to facilitate stakeholder feedback into the operation of the system. An adequately resourced AEC Advisory Group of Stakeholder Engagement including independent experts should be established to assist in these actions.

   2/ Public scrutiny:

   Ensuring the transparency and accessibility of the disclosure regime on the AEC's website, the Transparency Register. This must be accompanied by support – such as is currently provided through the AEC's Funding and Disclosure Helpdesk.

   3/ Education and information:

   This builds the capacity of political parties, candidates, third-party campaigners, donors and other groups and *individuals* to comply with the regulatory regime. This should be in the form of providing information and active provision of *education* and training to those who have obligations under the electoral finance regime.

4/ Measures facilitating ease of compliance:

These measures may include:

(a) Using available technology to facilitate easier and faster lodgment of declarations, such as through electronic and auto-populating returns.

(b) Creating a system that provides an electronic 'checklist' to ensure, for instance, that caps have not been exceeded and legislation breached.

(c) Adopting an approach of greater transparency as to the AEC's interpretation of the regulatory regime.

To ensure inclusivity, the AEC must also offer non-digital methods to support disclosure for individuals who lack technological literacy or access. The AEC should also publish this material in different languages.

5/ Resourcing of the AEC:

Importantly, the AEC must receive an appropriate increase in resources to reflect the increases in its own regulatory and operational responsibilities under the electoral reforms.

3. The Government pursue complementary reforms to address undue influence in politics, and in particular reforming the regulation of **lobbyists**.

4. The Government address **threats to the electoral system, particularly from dis- and mis-information**, and take proactive steps to counter such threats, through a number of commitments and reforms to strengthen democratic integrity and the authority of information available to voters.

5. The Centre for Public Integrit recommends that **a further and more complete inquiry** into how **fixed terms** could be implemented in Australia in the most appropriate way.

6. The Centre for Public Integrity **does not recommend the proposal for four-year terms is pursued.**

The Electoral Reforms Passed by the 47th Parliament

The Electoral Reforms Passed by the 47th Parliament Must be Revisited

The Centre for Public Integrity has long supported reform of political donation laws, particularly through a holistic approach that includes reduced disclosure thresholds, real-time disclosures and a broader definition of what constitutes a donation. We have sought to address the problem of undue influence through donations and expenditure caps, and to redress the advantages enjoyed by major parties and incumbent parliamentarians in the system.

When the *Electoral Legislation Amendment (Electoral Reform) Act 2024* was passed, the Centre for Public Integrity was clear that we held grave concerns in relation to the process through which it was developed and pushed through the Parliament. The Government guillotined debate, and proceeded with important, complex and foundational democratic amendments in the absence of a parliamentary inquiry, or without the benefit of informed advice from an independent expert panel. **As the legislation has not yet commenced, the Centre maintains the need for a properly informed review of the federal electoral laws.**

The legislation contained some important steps towards greater transparency and equality in electoral finance, for instance, in the amendments that lowered the donation-disclosure threshold and introduced more timely disclosure of political donations. However, the Centre continues to hold a number of serious concerns, particularly in relation to those provisions that would continue to entrench major party advantage and allow for big money to exert undue influence on politics (for instance, through the treatment of 'nominated entities' and loopholes in the setting of expenditure and gift caps).

Together with the Australia Institute, Transparency International and the Australian Democracy Network, the Centre for Public Integrity (April 2025) has called for further **changes to be made to six key areas:**

- Aggregate donations for the purposes of both the gift cap and disclosure cap;
- Change the national cap of $90 million by introducing an 'anti-piling'; provision, lowering the national spending cap and creating a higher per seat cap;
- Establish an independent, expert technical review process in the style of the former Queensland Electoral and Administrative Review Commission;
- Abolish the special treatment of nominated entities;
- Require all cash-for-access and corporate donations be disclosed regardless of size;
- Create a fit-for-purpose regulatory regime for charities during elections.[1]

Given the amendments did not take effect prior to the 2025 election, we restate these concerns about both process and substance and recommend that these amendments are revisited during the 48th Parliament, before taking effect on 1 July 2026.

1 See the full media release and calls for change here: https://publicintegrity.org.au/media-release-fixing-the-flaws/

Preparatory Work Must be Undertaken to Support Compliance

We also take the opportunity to highlight the importance of preparatory work that will need to be done by the Australian Electoral Commission to design systems that facilitate compliance with the new regime when it does come into effect and to engage stakeholders in that process; this particularly applies to new entrants, smaller parties and independents and third-party campaigners (especially small organisations).

The 2024 electoral reforms – particularly in relation to the lowering of the disclosure threshold, the new expedited disclosure regime and the new timelines/deadlines by which donors and recipients must declare donations, and the introduction of donation and expenditure caps – significantly increase the obligations on these individuals and groups. It is therefore important that the AEC undertake the necessary preparatory work to provide proactive support for participants that promotes ***voluntary compliance*** with the new electoral laws.[2] This is what the AEC refers to as 'deter[ring] non-compliance',[3] and what the Electoral Commission of Queensland refers to as 'proactive preventative regulatory methodology.'[4]

Of course, this work necessarily sits alongside the 'harder', and reactive dimensions of compliance.[5] In this respect, we note and support the recommendation in the submission of Centre Director Professor Joo-Cheong Tham that a loophole be closed in the current regulatory scheme that is, there are no anti-avoidance provisions relating to disclosure of donations, disclosure of electoral expenditure, and annual returns, and there is no offence provisions attached to anti-avoidance conduct. We support Professor Tham's recommendations to amend the legislation to ensure that the anti-avoidance provisions are strong and comprehensive.

We note that the AEC has indicated it will seek to achieve the softer, more proactive approach through:

- **providing information on the AEC website** to promote awareness of disclosure responsibilities under the Electoral Act and Referendum Act
- being approachable and **simplifying processes** to enable compliance to be easily achieved

2 We also draw the Committee's attention to the work of Joo-Cheong Tham on the different ways of promoting compliance: Joo-Cheong Tham, Establishing a Sustainable Framework for Election Funding and Spending Laws in New South Wales: A Report Prepared for the New South Wales Electoral Commission (November 2012), 195-216. We draw many of our recommendations from this report. See also Bradley Edgman AEC (Political Funding and Disclosure Schemes: Approaches to Compliance and Enforcement (November 2013)), which also focused on proactive compliance strategies for regulators.

3 AEC, Financial Disclosure Compliance and Enforcement Policy (February 2025).

4 ECQ Compliance and Enforcement Policy (2022) p 5.

5 Such as audits and penalties: Tham (n 2) 195.

- providing easy avenues to seek advice and information via the **funding and disclosure help desk**
- publishing **disclosure scheme guides** and providing **educational material**
- **sending information about the disclosure scheme obligations** to candidate agents, newly registered political parties, significant third parties, associated entities, third parties, members of the House of Representatives, senators, donors, and potential referendum entities
- **sending obligation and/or reminder letters** (including advice on the potential penalties for non-compliance)
- **monitoring information** in the public domain to determine whether an individual or entity may have a disclosure obligation under the Electoral Act or Referendum Act
- facilitating public access to disclosure information via publication of information from returns in an easy-to-use format on the **Transparency Register**
- encouraging potential breaches of the disclosure scheme to be reported to the AEC via the **tip-off facility**.'[6]

The Centre for Public Integrity urges the AEC, supported by appropriate resourcing, to undertake this important work in accordance with the following five principles:

1/ Engagement with stakeholders:

If it is not already doing so, the AEC should commence to work with all stakeholders, but particularly with those who will need additional support in complying with the new electoral reforms, to ensure that the support the AEC provides is tailored and useful. In this respect, we recommend that the AEC undertake a stakeholder engagement process to determine what information, education and other measures would best facilitate compliance. As the Department of Finance's *Regulatory Policy, Practice & Performance Framework* (2023) states:

> Regulators should **work collaboratively with stakeholders** to design effective solutions that have the greatest positive impact on the broader community.

6 AEC (n 3) p 6.

This stakeholder engagement must occur at the time of designing the system, as well as include an ongoing system of review to facilitate stakeholder feedback into the operation of the system. Such reviews should be informed by proactive monitoring of compliance with the electoral reforms, and identification of trends and problems with compliance that can inform reform to the way in which AEC supports compliance.

We also recommend that an adequately resourced AEC Advisory Group of Stakeholder Engagement including independent experts is established to assist in these actions.

2/ Public scrutiny:

Ensuring the transparency and accessibility of the disclosure regime on the AEC's website, the Transparency Register. This must be accompanied by support – such as is currently provided through the AEC's Funding and Disclosure Helpdesk.

3/ Education and information:

This builds the capacity of political parties, candidates, third-party campaigners, donors and other groups and individuals to comply with the regulatory regime.

Information – In the form of information on the website, fact sheets and other public communications. This information must be clear, accessible, and targeted at different users, with a particular emphasis on supporting new entrants, smaller parties and independents and third-party campaigners (especially smaller organisations).

Education: In the form of active provision of training to those who have obligations under the electoral finance regime. This must be readily available, free to participate in, and targeted at different users, (again with a particular emphasis on supporting new entrants, smaller parties and independents, independents, third-party campaigners (especially smaller organisations)).

The targeting of information to different stakeholders is adopted by the Electoral Commission of Queensland, to help avoid information overload and enhance clarity.

4/ Measures facilitating ease of compliance:

These measures may include:

(a) Using available technology to facilitate easier and faster lodgment of declarations, such as through electronic and auto-populating returns.[7]

(b) Creating a system that provides an electronic 'checklist' to ensure, for instance, that caps have not been exceeded and legislation breached.[8]

(c) Adopting an approach of greater transparency as to the AEC's interpretation of the regulatory regime. Without taking the place of a judicial pronouncement on the measures, and of course subject to challenge in a court, guidance should be issued by the AEC as to its approach, for instance, to what constitutes a 'political donation' or an 'electoral expenditure' under the Act (akin to the rulings that are issued by the Australian Taxation Office indicating its interpretation of taxation legislation). There should also be a mechanism for organisations and individuals to seek clarification regarding the AEC's approach to particular provisions. This will alleviate one known significant compliance cost on these groups, that is, of accessing advice on the interpretation of the statute. Some of this content could be drawn from the manuals or other materials used by the AEC internally, that allow its staff to navigate these complex and ambigous issues.

To ensure inclusivity, the AEC must also offer non-digital methods to support disclosure for individuals who lack technological literacy or access.[9] The AEC should also publish this material in different languages, as it does with material relating to compulsory voting, in order to create greater accessibility for all candidates and members of the public.

5/ Resourcing of the AEC:

Importantly, the AEC must receive an appropriate increase in resources to reflect the increases in its own regulatory and operational responsibilities under the electoral reforms. There are two elements to this increased responsibility: the 'one-off' burden(to facilitate the transition to the new regime and to undertake these preparatory compliance-supporting activities) and the ongoing burden.

7 Tham (n 2).

8 Joint Standing Committee on Electoral Matters, *Report on the Funding of Political Parties and Election Campaigns* (2011)

9 This aligns with the Commonwealth's whole-of-government Regulatory Policy, Practice & Performance Framework, which states that digitisation should be 'balanced with accessibility considerations to ensure inclusive and equitable digital design' (pg 12).

Complementary Reforms to Address Undue Influence in Politics

Finally, we draw the Committee's attention to other reforms that are needed to accompany electoral reforms seeking to address undue influence in our electoral system. In particular, we emphasise the importance of reforming the regulation of lobbyists.

As the Centre for Public Integrity has argued in its research report A Seat at the Table (July 2025), it is necessary to make a number of critical changes to the federal lobbying regime to embed transparency, integrity and equality within it. In particular, the Centre has argued for 15 amendments to the current federal regime:

1. Replace the federal Lobbying Code of Conduct with a legislative regime designed to provide transparency, uphold integrity, and encourage equality.

2. Amend the definition of 'lobbyist' to capture the activity of lobbying in all relevant forms, including unpaid and in-house, or consider an exclusive focus on the activity of lobbying.

3. Ensure that exclusions to the definition of 'lobbying activities' remain adequate to maintain the effective operation of democratic processes.

4. Broaden the scope of regulation to include lobbying targeted at all parliamentarians.

5. Require political donations made within a specified time period by applicants for registration as a federal lobbyist to be disclosed and published on the register.

6. Provide for the monthly disclosure and publication of all lobbying activities by both registered lobbyists and those whom they lobby.

7. Amend the Standing Orders of both the House of Representatives and the Senate to require all Bills and legislative instruments tabled therein to be accompanied by a public interest 'footprint', providing details of any consultation and lobbying that took place in respect of the proposed legislation or instrument.

8. Prohibit offers, payment, and receipt of success fees for lobbying.

9. Broaden the coverage of cooling-off periods to include all parliamentarians.

10. Extend the duration of cooling-off periods to align with the duration of a standard parliamentary term.

11. Broaden the scope of cooling-off periods to include lobbying on any subject-matter.

12. Broaden the scope of cooling-off periods to include advising or consulting on lobbying.

13. Task the body responsible for enforcing the lobbying regime with providing training and advice on its operation.

14. Transfer responsibility for enforcing the lobbying regime to an adequately funded and independent statutory authority capable of monitoring compliance, investigating and publicly reporting on breaches, and recommending proper sanctions.

15. Introduce specific obligations requiring lobbied persons to uphold equal participation

Threats of Interference in the Electoral System

The Centre for Public Integrity has previously made a submission to the Senate Select Committee on Information Integrity on Climate Change and Energy, dated 19 September 2025. This submission explained the connection between reforms directed at strengthening democratic integrity and combatting electoral threats such as dis- and misinformation; it also outlined a number of different ways that government can take a proactive role in countering such threats. Our recommendations to that committee were as follows:

1. Government commit to the long-term agenda of government and democratic integrity, including through:
    (a) increasing government transparency, including through an independent and comprehensive review of the FOI regime;
    (b) supporting strong and independent institutional oversight mechanisms;
    (c) strengthening the framework for protecting whistleblowers by establishing a public authority dedicated to this purpose;
    (d) addressing the undue influence of money in politics;
    (e) promoting greater transparency around the influence of lobbyists and closing the revolving door between industry and the government;
    (f) increasing the independence and quality of government appointments; and
    (g) introducing truth in political advertising regulation.
2. Government commit to supporting knowledge institutions, in particular via:
    (a) commitment to the independence of government knowledge institutions, including through merit-based and independent processes for appointment, prohibiting inappropriate executive direction, providing adequate and secure funding, empowering these institutions to speak out and report publicly, and respecting the independence and authority of government knowledge institutions and defending them from inappropriate political attack;
    (b) commitment to the proper resourcing and independence of universities; and
    (c) support for the independence and sustainability of the NGO sector.

3. Government support the role of the media as a democracy-supporting institution and encourage public interest journalism, through:
   (a) Increasing the security and reliability of funding for public broadcasters the ABC and SBS by introducing longer funding cycles;
   (b) Establishing an independent media regulator with a range of functions.
   (c) Establishing an independent and permanent trust to assist emerging news ventures, especially in regional areas, and ensuring that the administration of grants to the media is transparent and accountable through the use of clear criteria and strong reporting requirements.

4. Government should provide platforms for trustworthy and compelling voices, particularly those that have been historically marginalised, to speak to government and the public, through, for instance:
   (a) requiring targets of organised lobbying to seek the views of other parties whose interests are likely affected by the adoption of a proposal the subject of lobbying activity;
   (b) Increasing the oversight and accountability of public engagement and consultation through the creation of an independent office that is responsible for overseeing and championing public engagement in government.

5. Government support the role of the media as a democracy-supporting institution and encourage public interest journalism, through:
   (a) Increasing the security and reliability of funding for public broadcasters the ABC and SBS by introducing longer funding cycles;
   (b) Establishing an independent media regulator with a range of functions.
   (c) Establishing an independent and permanent trust to assist emerging news ventures, especially in regional areas, and ensuring that the administration of grants to the media is transparent and accountable through the use of clear criteria and strong reporting requirements.

The full submission is available here:
https://www.aph.gov.au/DocumentStore.ashx?id=c65ab652-b7e9-4d46-b4ad-6db070aec441&subId=778515

The Composition of the Parliament: Fixed Terms & Four-year Terms

Our focus is on the terms of reference addressed to the length of parliamentary terms (and specifically the proposal to increase the length from three to four year terms), and the question of fixed terms.

It is important to decouple these issues, as they each raise separate political and constitutional issues for consideration.

Fixed Terms

The Centre for Public Integrity supports the active consideration of fixed terms.[10] There are a number of compelling in principle reasons for supporting fixed terms. The most important of these is reducing the political 'incumbency' advantage of the government, which can call elections at the most politically convenient time. Fixed terms mean that the opposition, as well as smaller parties, independents and new candidates can better plan their election campaigns.

There are also other public policy reasons that support the move to fixed terms: they allow for greater certainty for the development, planning and implementation of policy by the public sector, greater stability for investment, and greater planning certainty for the AEC in conducting elections. There are also some economic advantages to such a move, as it reduces the ability of the incumbent government to call early elections, and thus the cost of holding as many elections over time.

However, any move to fixed terms must be accompanied by an appropriate 'safety valve' so that an election can be called in circumstances where the government loses confidence or is unable to pass supply.

There is a strong argument that a formalised introduction of fixed year terms (such as through legislation) would require a constitutional amendment to s 28 of the Constitution, as it would represent a constraint on the discretion of the Governor-General in section 28.[11]

However, a voluntary agreement between the major parties to implement fixed terms, such as that might over time amount to a constitutional convention, would not require constitutional amendment.

The Centre for Public Integrity does not support the adoption of fixed terms in the absence of such an inquiry. It supports a further and more complete inquiry into how fixed terms could be implemented in Australia in the most appropriate way.

10 Consistent with John Daley and Rachel Krust, Institutional Reform Stocktake (April 2025) [4.3].

11 See further discussion of this issue by Professors Anne Twomey and George Williams in The Conversation: https://theconversation.com/four-year-federal-terms-are-too-hard-but-what-about-making-the-three-year-term-fixed-57278

Four-year Terms

The Centre for Public Integrity holds a number of concerns in relation to the extension of parliamentary term lengths from three to four (or even five) years, and does not recommend the proposal is pursued further.

The advantages of such a move are predominantly claimed to be related to the development of longer-term policy and legislative proposals by the incumbent government, as the government spends less time in election mode. There are also benefits associated with stability and business confidence. However, there is very little evidence to show that governments with longer terms do focus on longer-term policies. Indeed, the research shows little difference in policy responses based on term length. In fact, the research suggests that, in terms of development of major policy proposals, 'whichever party is in power matters far more than the length of the electoral cycle'.[12]

There are also the potential economic advantages of such a move, as elections held less frequently will cost less,[13] which may also have advantages in reducing election fatigue.

However, there are significant democratic and accountability concerns with a move to a longer term. There is the reduction in direct electoral accountability for the House of Representatives with four-year elections. There are ways through which these concerns can be remedied, but these would require other structural changes to accompany any move to make sure there are greater ongoing citizen participation in government, including through:

- a properly resourced, pro-disclosure FOI regime;
- government compliance with parliamentary oversight particularly through compliance with orders for production of documents; and
- enhanced opportunities for scrutiny of major, long-term spending projects.

The loss of electoral accountability becomes even more pronounced if the Senate adopts an eight-year term (although the extension of terms in the House does not necessarily require a similar extension in the Senate). Alternatives for the Senate carry with them their own concerns – for instance if a four year term is adopted, then the advantages of staggered Senate terms for representation are lost.

12 See summary of the current research in Jill Sheppard, 'Every 3 years, we play the election date waiting game. Are fixing terms the solution?' *The Conversation* (27 March 2025)

13 See further Millie Muroi, 'The $60 billion saving we could make if Australians voted less often' *Sydney Morning Herald* 15 March 2025.

14 See further Gabrielle Appleby and Megan Davis, *The Failure of the Voice Referendum and the Future of Australian Democracy* (Anthem Press forthcoming 2026).

Finally, any move to four-year terms would require a constitutional amendment to s 28 of the Constitution. The experience of Australia's last referendum in relation to the Aboriginal and Torres Strait Islander Voice proposal underscores the need for government to better prepare for future referendums.[14] Before pursuing future constitutional change, the Centre for Public Integrity urges government to undertake the necessary preparatory work, and in particular a full review of the *Referendum (Machinery Provisions) Act 1984* (Cth), well ahead of any substantive proposal for constitutional change being developed.[15]

15 See further discussion of these in Susan McKinnon Foundation, *Discussion Paper: Four-Year Terms for the Commonwealth House of Representatives* (6 March 2024).